

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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MERARI OLAVARRIA,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
SAMANTHA ANGELO, Tax No. 950008, DETECTIVE
TYRONE WALTON, Shield No. 4576, SERGEANT
JOSEPH BURCKHARD, Tax No. 94137, and POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 29, 2018

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER SAMANTHA ANGELO, Tax No. 950008, Narcotics Borough Bronx
Squad, One Police Plaza, New York, NY 10038

DETECTIVE TYRONE WALTON, Shield No. 4576, Narcotics Borough Bronx Squad,
One Police Plaza, New York, NY 10038

SERGEANT JOSEPH BURCKHARD, Tax No. 94137, Narcotics Borough Bronx Squad,
One Police Plaza, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

MERARI OLAVARRIA,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
SAMANTHA ANGELO, Tax No. 950008, DETECTIVE
TYRONE WALTON, Shield No. 4576, SERGEANT
JOSEPH BURCKHARD, Tax No. 94137, and POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff MERARI OLAVARRIA, by her attorneys, Jacobs & Hazan, LLP, as and for her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On March 31, 2017, at approximately 8:30 a.m., plaintiff Merari Olavarria, while lawfully in front of 15 E. 199th Street, Apt. 2A, Bronx, New York, was subject to an unlawful stop, question frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was unlawfully imprisoned for approximately 18 hours until the Bronx County District Attorney declined to prosecute plaintiff, and she was released from custody. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully searched, stopped, questioned, frisked, confined, falsely arrested, and falsely imprisoned plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff MERARI OLAVARRIA is a resident of the state of New York.

3. POLICE OFFICER SAMANTHA ANGELO, Tax No. 950008, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER SAMANTHA ANGELO, Tax No. 950008, is and was at all times relevant herein, assigned to the Narcotics Borough Bronx Squad.

5. POLICE OFFICER SAMANTHA ANGELO, Tax No. 950008, is being sued in her individual and official capacity.

6. DETECTIVE TYRONE WALTON, Shield No. 4576, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. DETECTIVE TYRONE WALTON, Shield No. 4576, is and was at all times relevant herein, assigned to the Narcotics Borough Bronx Squad.

8. DETECTIVE TYRONE WALTON, Shield No. 4576, is being sued in his individual and official capacity.

9. SERGEANT JOSEPH BURCKHARD, Tax No. 94137, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT JOSEPH BURCKHARD, Tax No. 94137, is and was at all times relevant herein, assigned to the Narcotics Borough Bronx Squad.

11. SERGEANT JOSEPH BURCKHARD, Tax No. 94137, is being sued in his individual and official capacity.

12. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police

department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

17. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on November 9, 2017.

18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. On March 31, 2017, at approximately 8:30 a.m., plaintiff was lawfully present in front of 15 E. 199th Street, Apt. 2A, Bronx, New York, when the defendant police officers unlawfully stopped, questioned, frisked, and arrested plaintiff without probable cause or legal justification.

22. By way of background, on March 31, 2017, at approximately 6:00 a.m., the defendant police officers executed a search warrant at 15 E. 199th Street, Apt. 1C and searched the apartment.

23. Notably, plaintiff was not present at 15 E. 199th Street, Apt. 1C when the defendant police officers searched the apartment at March 31, 2017, nor did she live there on March 31, 2017.

24. In fact, as per the decline to prosecute paperwork, the superintendent of 15 E 199th Street informed the defendant police officers that on March 31, 2017 that plaintiff did not live at 15 E. 199th Street, Apt. 1C, Bronx, New York.

25. On March 31, 2017, at approximately 8:30 a.m., plaintiff went to 15 E. 199th Street, Apt. 2A, Bronx, New York to visit her friend that lived in the building.

26. As plaintiff was leaving her friend's apartment, the defendant police officers unlawfully stopped, questioned, frisked, and searched claimant without reasonable suspicion or probable cause.

27. Notably, at no point in time did the defendants recover any drugs, guns, or contraband of any kind from plaintiff or from plaintiff's possession, custody, or control.

28. At no time relevant herein did plaintiff commit a crime or violate the law, nor did plaintiff behave in a manner that would lead a reasonable police officer to believe that plaintiff committed, was about to commit or was committing a crime.

29. Nevertheless, plaintiff was unlawfully handcuffed and unlawfully arrested by the defendant officers without legal justification or probable cause.

30. Plaintiff was transported by the defendant police officers to the 52nd Precinct against her will, where she was photographed, searched, fingerprinted and then placed in a holding cell by the defendants.

31. While at the precinct, the defendant police officers falsely stated to the Bronx District Attorney's Office that on March 25, 2017 plaintiff allegedly sold marijuana to an undercover police officer.

32. At no point in time did plaintiff sell marijuana to an undercover police officer on March 25, 2017.

33. Further, while at the precinct, the defendant police officers falsely stated to the Bronx District Attorney's Office that on a previous unknown date the plaintiff had been in possession of a forged instrument, specifically a forged money order.

34. Notably, as per the decline to prosecute paperwork, there was no probable cause to believe that plaintiff had any knowledge that this alleged money order was forged or stolen.

35. After several hours in custody, plaintiff was transported from the 52nd Precinct to Bronx Central Booking and placed in a holding cell.

36. On April 1, 2017 at approximately 12:00 a.m., after being unlawfully detained for approximately 18 hours, the District Attorney declined to prosecute plaintiff, and plaintiff was released from custody.

37. Notably, as per the Bronx District Attorney decline to prosecute paperwork, there was insufficient evidence to indicate that plaintiff sold marijuana to an undercover police officer on March 25, 2017, and there was no probable cause to believe that plaintiff had any knowledge that an alleged money order was forged or stolen.

38. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest and imprisonment plaintiff.

39. The unlawful stop, question, frisk, search, seizure, false arrest and imprisonment of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, and falsely imprisoned, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

42. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

45. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

48. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

51. Defendants lacked probable cause to search plaintiff.

52. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

55. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

58. The conduct of defendants in stopping, frisking, and searching plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

59. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

62. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Merari Olavarria. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

65. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

66. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

69. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

75. Defendants failed to intervene to prevent the unlawful conduct described herein.

76. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

77. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

81. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Merari Olavarria demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 29, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER SAMANTHA ANGELO, Tax No. 950008, Narcotics Borough Bronx
Squad, One Police Plaza, New York, NY 10038
DETECTIVE TYRONE WALTON, Shield No. 4576, Narcotics Borough Bronx Squad,
One Police Plaza, New York, NY 10038
SERGEANT JOSEPH BURCKHARD, Tax No. 94137, Narcotics Borough Bronx Squad,
One Police Plaza, New York, NY 10038

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
June 29, 2018

/s/
STUART E. JACOBS